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| <b>Texas WIC<br/>Health and Human Services Commission</b> |
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Effective August 1, 2025

Policy No. GA:14.0

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## **Staffing Standards**

### **Purpose**

To ensure the delivery of quality services meet the needs of WIC participants.

### **Authority**

State Policy

### **Policy**

Each local agency (LA) must ensure that qualified professionals are available to provide WIC services.

### **Procedures**

- I. Each LA must name a WIC Director as the person responsible for the overall day-to-day operation of the local WIC Agency. The WIC Director must comply with the training requirement outlined in [TR:02.0 Orientation/Training of Local Agency Directors](#).
- II. Each LA must employ or contract with a registered or licensed dietitian (RD, RDN, LD, RD/LD or RDN/LD). Dietitians must be employed according to the following staffing standards:
  - A. Local agencies with less than 3,000 participants are required to have an RD, RDN, LD, RD/LD or RDN/LD consultant(s) providing a minimum of 12 hours consultation per month.
  - B. Local agencies with 3,000-6,000 participants are required to have an RD, RDN, LD, RD/LD or RDN/LD consultant(s) providing a minimum of 24 hours consultation per month.
  - C. Local agencies with 6,000-10,000 participants are required to have an RD, RDN, LD, RD/LD or RDN/LD consultant(s) providing a minimum of 48 hours consultation per month.
  - D. Local agencies with more than 10,000 participants are required to have, at a minimum, one Full Time Equivalent (FTE) RD, RDN,

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LD, RD/LD or RDN/LD.

- III. Each local agency must employ one FTE nutritionist. A nutritionist must have a Bachelor's or Master's degree in a nutrition related field. Examples include: Nutrition Sciences, Human Nutrition or Dietetics, Community Nutrition, Public Health Nutrition, Clinical Nutrition, Home Economics with emphasis in Nutrition.
  - A. Local agencies with more than 10,000 participants are required to have one FTE nutritionist per 10,000 participants.
  - B. The full-time dietitian may also serve as a full-time nutritionist.
- IV. Each LA must have an International Board-Certified Lactation Consultant (IBCLC).
  - A. IBCLCs must be employed according to the following staffing standards:
    - 1. Local agencies with less than 3,000 participants are required to have an IBCLC(s) providing a minimum of 12 hours consultation per month.
    - 2. Local agencies with 3,000-6,000 participants are required to have an IBCLC(s) providing a minimum of 24 hours consultation per month.
    - 3. Local agencies with more than 6,000-10,000 participants are required to have an IBCLC(s) providing a minimum of 48 hours consultation per month.
    - 4. Local agencies with more than 10,000 participants are required to have, at a minimum, one FTE IBCLC(s).
  - B. The FTE IBCLC may also serve as FTE RD or RDN as long as they have the qualifications for both and can meet the staffing standards.
- V. Each LA must have at least one Designated Breastfeeding Expert (DBE). A DBE is an expert with special experience or training in helping breastfeeding mothers and who provides breastfeeding expertise and care for more complex breastfeeding problems when

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WIC staff face situations outside their scope of practice. Individuals with this designation can be WIC staff including Breastfeeding Coordinators, IBCLC(s), dietitians, nutritionists and nurses. The DBE must have one year of experience in counseling breastfeeding mother/infant dyads.

- A. The IBCLC is the preferred WIC DBE.
- B. When a non-IBCLC is a DBE, they should work within their scope of practice and refer to Lactation Support Center (LSC), health care provider (HCP) or community resources as needed.
- C. LAs with a non-IBCLC DBE are not exempt from employing an IBCLC and meeting staffing standards outlined above.

VI. Each LA must employ at least one Breastfeeding Peer Counselor (PC). The PC must comply with requirements outlined in [BF:03.0 Breastfeeding Peer Counselor](#) .

VII. LAs that are unable to meet the staffing standards (i.e. Registered Dietitian, Nutritionist, Peer Counselor, IBCLC, etc.) must request a waiver in the interim that includes justification regarding the inability to meet the staffing standards and a plan for satisfying the requirement.

- A. The waiver request must be submitted in writing to the LA's State Agency Partner for approval no later than 30 days following the vacancy.
- B. The LA must maintain the written approval on file for the purpose of an audit monitoring review.
- C. Staffing Standard waivers may be approved for up to 1 year. LAs must request a renewal if needed beyond the initial approval period.
- D. LAs requesting a waiver for RD or IBCLC must have a plan for providing high-risk referrals and counseling within the waiver request. Please refer to [CS:33.0 High Risk Referrals](#) .
- E. The IBCLC waiver request must include a plan that explains how IBCLC services will be provided at no charge to the WIC participant (e.g. through video consult with WIC Lactation Support Centers or

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coordination with local hospital IBCLC).

- F. The minimum number of hours for consultations will not apply to agencies with a staffing waiver

### **Guidelines**

The following resources can assist LAs with meeting staffing standards.

- A. Contact a local or regional hospital dietitian/lactation consultant.
- B. Advertise in local or regional newspapers/newsletters.
- C. Advertise at area universities or community colleges.
- D. Advertise online on a job search engine.
- E. Post a job at:

[Texas WIC Program](#)

[National WIC Association \(NWA\)](#)

[Texas Academy of Nutrition and Dietetics](#)

[United States Lactation Consultant Association \(USLCA\)](#)